

**OARK LIMITED****UNANIMOUS SOLE-MEMBER CONSENT, SPECIAL RESOLUTION, DIRECTOR'S INTEREST DISCLOSURE, AND SOLE-DIRECTOR DECISION RECORD**

Company number: PVT-AAADAM3

Proposed effective date of related-party licence and operating policy: 1 August 2026

Decision date: \_\_\_\_\_ 2026

Sign this record on its true decision date and keep it with Oark Limited's statutory records. Attach the complete final Licence Agreement as Annex 1 and Operating Policy as Annex 2. Do not backdate it.

**1. Status and documentary basis**

1. The company is **Oark Limited** (the **Company**), a Kenyan private company limited by shares, incorporated on 23 February 2017 under company number PVT-AAADAM3.
2. The official company search supplied for this exercise was issued on 3 May 2018 and showed Charles Njogu Kabui as the sole director and holder of all 100 ordinary shares then issued. A second supplied registry search was dated 23 February 2017. Neither search independently proves the register as at the Decision Date.
3. For purposes of this record, **Charles Njogu Kabui** (the **Member** and the **Director**) represents to the Company that, on the Decision Date:
  1. he remains the only member and beneficial owner of all issued shares in the Company;
  2. he remains the only director of the Company;
  3. the Company has no other director, alternate director, secretary required to approve this transaction, debenture holder with approval rights, or shareholder agreement governing this transaction;
  4. no amendment to the Company's articles prohibits this transaction or disapplies the sole-director and sole-member provisions relied on below; and
  5. no creditor, investor, grantor, regulator, court, administrator, liquidator, or other person has a consent right that applies to this transaction.
4. Before execution, the Member must obtain and check a current official company search, the filed articles, registers of members and directors, register of charges, and latest annual return. Do not sign this record unless they confirm the authority and status relied on below or the record has been revised to match them.
5. The agreement reviewed is the final execution version of the **Intellectual Property Ownership Confirmation and Non-Exclusive Commercial Licence Agreement** between Charles Njogu Kabui personally as licensor and the Company as licensee (the **Licence Agreement**), attached as Annex 1.
6. The internal **Operating, Tax, Intellectual-Property, and Owner-Payment Policy** (the **Operating Policy**) reviewed with the Licence Agreement is attached as Annex 2.

**2. Legal capacity in which each part is made**

1. **Part A** is a unanimous decision and special resolution of the sole Member in the Member's capacity as member, authorising future Company conduct and directing execution. It is not expressed as a director's vote on his own interested transaction.
2. **Part B** is the Director's written disclosure of the nature and extent of his interest to the Company and its sole Member.
3. **Part C** is a contemporaneous record of the Company benefit, alternatives, solvency information, and decision process.
4. **Part D** is the sole Director's written record that he will implement the Member's direction and execute the Licence Agreement for the Company. It does not purport to authorise the conflict by an interested director vote.
5. This structure is intended to operate consistently with sections 32, 142 to 151, 158, 207, 262, 317 to 319, and 37 of the Companies Act, 2015; the Fourth Schedule model articles for private companies limited by shares, including articles 3, 4, 7, 16 to 20; and any filed articles of the Company that apply.



## PART A - UNANIMOUS SOLE-MEMBER CONSENT AND SPECIAL RESOLUTION

### 3. Materials considered by the Member

The Member confirms that, before making this decision, he received and considered:

1. the complete proposed Licence Agreement and all four Schedules;
2. the complete proposed Operating Policy;
3. the 2017 certificate of incorporation;
4. the company searches dated 23 February 2017 and 3 May 2018;
5. the memorandum of association and registration material supplied;
6. the identified Git provenance for Blober and ToKnow;
7. the known historic statements and payment arrangements involving Oark;
8. the known existing Blober customer terms, sales, refunds, and future-update promises;
9. the known GPLv3, MIT, LGPL, and other third-party licence qualifications;
10. the Company's current and contingent customer, tax, support, refund, data-protection, and operating obligations;
11. the conflict disclosure in Part B;
12. the Company-benefit and solvency record in Part C; and
13. the warnings and unresolved matters listed in clause 10 below.

### 4. Member findings

The Member, acting in his capacity as the sole Member, records the following findings for the Company:

1. The Company requires a documented right to continue commercially exploiting Blober and ToKnow after 31 July 2026.
2. The Company has not produced a written assignment under which it bought either Product from Charles Njogu Kabui.
3. A licence is commercially preferable to an acquisition because the Company:
  1. pays no up-front acquisition price;
  2. pays no minimum guarantee;
  3. receives a worldwide royalty-free commercial right;
  4. retains all Product revenue subject to its own costs and liabilities;
  5. is released from contractual royalty claims for authorised use before the Effective Date;
  6. receives licensed access to Improvements created by the Licensor while he works independently or for the Company, without acquiring the underlying Intellectual Property Rights; and
  7. may terminate prospectively on 30 days' notice.
4. No royalty or licence fee is payable. This removes recurring statements, invoices, royalty withholding, and royalty accounting, but the possible application of sections 18A and 23 of the Income Tax Act remains subject to tax review.
5. Existing customer, consumer, creditor, tax, Personal Data, and third-party licence rights are expressly preserved rather than purportedly extinguished.
6. The arrangement does not state or assume that an Oark-owned asset can be removed from the Company estate by labelling it as personally owned.
7. The contingent confirmatory assignment in clause 3.8 of the Licence Agreement applies only if a competent authority later determines that Oark owns a right the Parties presently believe it does not own. It is supported by the composite consideration stated there and remains subject to any required approval, valuation, recordal, stamp duty, and insolvency law.
8. On the information in Part C, the Company expects the Licence Agreement to promote its success for the benefit of its Member and to support lawful revenue generation.
9. The Operating Policy gives the Director ordinary-course authority without repeated internal approvals, while reserving salary, dividends, loans to the Director, IP transfers, financing, ownership changes, and other exceptional matters for a written decision.
10. Setting director remuneration at nil avoids creating a salary promise the Company cannot presently fund. It



does not permit employment income or director remuneration to be disguised as a dividend, loan repayment, reimbursement, or personal expense.

## 5. Unanimous consent and special resolution

The sole Member, holding 100% of the voting rights and acting by unanimous consent, makes the following decision and passes the following **special resolution**:

### RESOLVED THAT:

1. the Company approve entering into the Licence Agreement in the form attached as Annex 1;
2. the Company adopt the Operating Policy in the form attached as Annex 2;
3. the related-party nature of the Licence Agreement and Operating Policy and the Director's personal financial and ownership interests are fully disclosed and expressly consented to;
4. under the members' reserve power in article 4 of the model articles, to the extent that article applies, the Director is directed to execute and implement the Licence Agreement for the Company, subject to the execution formalities in section 37 of the Companies Act;
5. the Company approves the acknowledgement that the identified Owner Assets, including Improvements Charles creates while working for Oark, are owned by Charles Njogu Kabui as between the Parties, subject to superior third-party rights and determination by a competent authority;
6. the Company approves the worldwide non-exclusive royalty-free Licence, the historic royalty release, the restrictions, the 30-day termination right, and the existing-customer run-off provisions;
7. to the extent section 158 of the Companies Act applies to any contingent confirmatory assignment or other acquisition or disposal under the Licence Agreement, the arrangement is approved by the Member under section 158, conditional on any independent valuation, statutory threshold, recordal, stamp duty, creditor, insolvency, or other mandatory requirement then applicable;
8. the Company approves the Licensor's expressly reserved freedom to compete and license others, but only to the extent that such approval can lawfully be given and without authorising misuse of Company Materials or breach of a non-waivable director duty;
9. Charles's remuneration for serving as Director is set at nil from 1 August 2026 until changed by a later lawful member decision, and neither the Operating Policy nor his primary working occupation creates a salary or contract of service;
10. the Director is authorised to conduct ordinary-course operations described in the Operating Policy without a separate internal approval for each act;
11. the Company may reimburse genuine Company expenses and repay no more than the verified credit balance of a genuine director-loan account, in each case using the evidence and controls in the Operating Policy;
12. the Director may pay an interim dividend only when current figures show sufficient profits lawfully available for distribution, the dividend is justified by those profits, the Company remains able to meet its liabilities, and all applicable withholding and records are completed;
13. subject to valid registration and confirmation that the actual income qualifies, the Company shall use Turnover Tax while eligible and shall monitor the statutory turnover and VAT thresholds;
14. the Company shall keep the business and tax records required by law and make any required related-party disclosure, but the Licence itself creates no monthly statement, licence invoice, royalty withholding, or separate Product-ledger requirement;
15. the Company shall correct public ownership statements prospectively, preserve historical records, and not falsify or alter past customer, expense, loan, payroll, dividend, or tax documents;
16. the Company shall lodge this special resolution with the Registrar within the statutory period and complete the implementation and post-execution actions in Part D and the legal review memorandum; and
17. this decision is a prospective authorisation and direction. It is not intended to be a self-ratification of an undisclosed past breach of duty or a direction to avoid tax or employment law.



## 6. Sole-member record

The Member directs that this signed document be provided to the Company as the written details of the sole Member's decision and retained for at least ten years under sections 317 to 319 of the Companies Act, and longer while the Licence Agreement, Operating Policy, or a related claim remains live.

### Signed by the sole Member

Signature: \_\_\_\_\_

Name: **Charles Njogu Kabui**

Capacity: **Sole Member holding all 100 issued ordinary shares**

National ID No.: **29393333**

Decision date: \_\_\_\_\_

Time: \_\_\_\_\_

Place: \_\_\_\_\_

## PART B - DIRECTOR'S DISCLOSURE OF INTEREST

### 7. Nature and extent of interest

I, **Charles Njogu Kabui**, disclose to the Company and its sole Member, before the Company enters the Licence Agreement and adopts the Operating Policy, that:

1. I am the Company's sole Director and sole Member;
2. I am the proposed Licensor in my personal capacity;
3. I claim personal legal and beneficial ownership of the Owner Assets identified in the Licence Agreement, subject to its exclusions and qualifications;
4. I will not be entitled personally to a royalty, licence fee, revenue share, or other payment under the Licence Agreement;
5. I receive personal ownership acknowledgments, indemnity protection, termination rights, and other non-cash contractual benefits under the Licence Agreement;
6. I retain the right to compete with Oark, operate through another entity, license another person, and sell or assign an Owner Asset subject to applicable law and existing rights;
7. I may benefit if the Company corrects prior ownership statements, acknowledges my title, transfers provider-level control, or executes a contingent confirmatory assignment;
8. as sole Member, I may receive lawful dividends from distributable profits, and as a creditor I may receive reimbursement of genuine Company expenses or repayment of a verified director-loan credit balance;
9. the Operating Policy does not guarantee any payment, and I may not use it to obtain salary, a personal benefit, an unlawful distribution, or repayment of an amount Oark does not genuinely owe;
10. my personal interests may conflict with the Company's interest in retaining cash, acquiring permanent, exclusive, transferable, cheaper, or creditor-accessible rights, or paying other liabilities first; and
11. I have therefore not treated an interested director vote as the sole source of authority for the arrangements and have sought the unanimous Member direction in Part A.

This is intended as the fullest reasonably practicable disclosure of the nature and extent of my interest for section 151 of the Companies Act and the Company's applicable articles. Because there is no other director to receive the disclosure, I give it in writing to the Company and its sole Member and direct that it be retained with the sole-director decision record.

### Signed by the Director as disclosure

Signature: \_\_\_\_\_

Name: **Charles Njogu Kabui**

Capacity: **Sole Director**

Disclosure date: \_\_\_\_\_

Time: \_\_\_\_\_

**PART C - COMPANY BENEFIT, ALTERNATIVES, AND SOLVENCY RECORD****8. Alternatives considered**

The Member and Director record that the following alternatives were considered:

| Alternative                   | Reason not selected at this time                                                                                                                                     |
|-------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Company acquisition of all IP | Requires a valuation and acquisition price, defeats the intended personal ownership structure, and may trigger section 158 and assignment-recordal requirements      |
| Exclusive perpetual licence   | Reduces the Licensor's restart and parallel-licensing freedom and would warrant materially different pricing                                                         |
| Royalty-free licence          | Selected because it gives the Company the greatest immediate benefit and removes recurring licence administration; related-party tax treatment still requires review |
| Fixed monthly fee             | Rejected because it burdens the Company during low-revenue months and requires invoicing and payment administration                                                  |
| Revenue-share royalty         | Rejected because it requires calculations, statements, invoices, withholding, and personal income reporting                                                          |
| Immediate at-will termination | Creates avoidable customer and Company continuity risk; 30 days without cause plus immediate termination for specified breaches was selected                         |

**9. Company benefit analysis**

The Company records the following anticipated benefits:

1. lawful documented access to Products it did not pay to acquire;
2. continued worldwide commercial exploitation;
3. no acquisition price, minimum royalty, or licence-fee administration;
4. retention of all Product revenue subject to Oark's operating costs and liabilities;
5. a historic contractual royalty release;
6. a defined customer run-off that reduces abrupt consumer harm;
7. clearer treatment of Owner Assets, Company Materials, Personal Data, and Third-Party Materials;
8. improved due-diligence and creditor disclosure; and
9. an ordinary-course operating authority that avoids repetitive internal approvals;
10. no salary promise or payroll administration before the Company can support it;
11. controlled routes for genuine reimbursements, director-loan repayments, and profit-backed dividends; and
12. termination rights if the structure no longer benefits the Company.

The Company also records the disadvantages: no exclusivity, no ownership, dependence on a terminable licence, restrictions on transfer and source access, the Licensor's freedom to compete, and possible tax adjustment of a related-party royalty-free arrangement. The Member accepts those disadvantages in light of the benefits and the Company's lack of an acquisition or licence payment.

**10. Solvency and liabilities as at the Decision Date**

The Director records that the Licence and Operating Policy require no acquisition price, royalty, minimum payment, salary, dividend, loan repayment, reimbursement, or transfer of cash or Company property to Charles. Each future payment remains subject to its own facts and legal conditions. After reviewing the Company's current bank, tax,



liability, customer-refund, and creditor position, the Director states that, on the Decision Date:

- ☐ the Company can pay its debts as they fall due;
- ☐ the Company will remain able to pay its debts after entering and performing the Licence Agreement;
- ☐ the Company is not entering the arrangement to delay, hinder, prefer, or defraud a creditor;
- ☐ there is no pending Insolvency Event;
- ☐ there is no undisclosed claim that Oark owns either Product; and
- ☐ all contrary facts are described in an attachment signed and dated by the Director.

No financial evidence need be attached unless a statement above requires explanation. Any exception or qualification is: \_\_\_\_\_.

## 11. Unresolved matters and assumptions

The Member and Director expressly acknowledge these unresolved matters:

1. no current 2026 official company search was supplied;
2. Oark's filed articles were not supplied, so the model articles are not confirmed as unmodified;
3. the latest annual return, Company registers, Company KRA ledger, bank statements, and financial statements were not independently reviewed for this drafting exercise;
4. the Microsoft employment documents supplied were password-encrypted and were not reviewed; the ToKnow first commit used a Microsoft email address;
5. domain and infrastructure provider records still use an Oark email address and have not been migrated to personal control;
6. ToKnow has publicly linked to GPLv3 and Blober release metadata has described released material as MIT-licensed;
7. Blober customer terms promise lifetime use and future updates;
8. customer transaction, user, receipt, and chat files have been committed to Blober Git history and require a separate data-protection response;
9. no independent IP valuation, tax opinion on the royalty-free related-party licence, insolvency opinion, or Kenyan advocate opinion has been obtained; and
10. Oark's eligibility and registration for TOT, the classification of each income stream, any opening director-loan balance, and Charles's current SHA status have not been independently verified; and
11. this record cannot make the arrangement immune from a court, regulator, creditor, customer, or insolvency office-holder.

## PART D - SOLE-DIRECTOR IMPLEMENTATION AND EXECUTION RECORD

### 12. Director's implementation decision

After receiving the unanimous Member direction in Part A and recording the disclosure and information above, I, Charles Njogu Kabui, acting as sole Director:

1. acknowledge the Member's direction to cause the Company to enter the Licence Agreement and adopt the Operating Policy;
2. record that I am not purporting to cast a decisive interested director vote to authorise my own transaction;
3. record that my implementation remains subject to the Companies Act, the Company's actual filed articles, mandatory law, and the truth of Part C;
4. decide to sign the Licence Agreement for Oark and implement the Operating Policy solely to carry out the authorised Company acts;
5. shall sign separately in the Company capacity and in the physical presence of an independent adult witness who attests the Company signature under section 37(2)(b) of the Companies Act;
6. shall not use the same signature stroke as both personal and Company execution;
7. shall arrange KRA stamp-duty adjudication and stamping within the applicable period;
8. shall lodge the special resolution with the Registrar within the statutory period and retain the filing evidence;
9. shall cause the final executed Agreement, Operating Policy, and this record to be entered in Oark's statutory



records;

10. shall ensure the related-party terms and material interest are disclosed in the Company's accounting records and financial statements as required by the Companies (General) Regulations; and
11. shall complete the post-execution checklist in the legal review memorandum.

### Signed as sole Director's written record

Signature: \_\_\_\_\_

Name: **Charles Njogu Kabui**

Capacity: **Sole Director of Oark Limited**

Date: \_\_\_\_\_

Time: \_\_\_\_\_

### ANNEX 1

Attach the complete final execution version of:

#### **Intellectual Property Ownership Confirmation and Non-Exclusive Commercial Licence Agreement**

File name: \_\_\_\_\_

SHA-256 before signature: \_\_\_\_\_

Number of pages: \_\_\_\_\_

Initialed by sole Member: \_\_\_\_\_

Initialed by sole Director: \_\_\_\_\_

### ANNEX 2

Attach the complete final execution version of:

#### **Operating, Tax, Intellectual-Property, and Owner-Payment Policy**

File name: \_\_\_\_\_

SHA-256 before signature: \_\_\_\_\_

Number of pages: \_\_\_\_\_

Initialed by sole Member and sole Director: \_\_\_\_\_